

TENTATIVE RULING

Case: **Sarkis v. Yolo County Public Agency Risk Management Insurance Authority et al.**

Case No. CV-2024-2614

Hearing Date: **January 15, 2026** **Department Fourteen** **9:00 a.m.**

Defendants Yolo County Public Risk Management Insurance Authority (“YCPARMIA”) and Jill Perez’s (“Perez”) (collectively, “defendants”) request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subds. (b), (c), (d), 453.)

The Court declines to rule on plaintiff Armond Sarkis’ (“plaintiff”) evidentiary objections nos. 5 and 7 as the evidence objected to is not relevant to deciding this motion. (Code Civ. Proc., § 437c, subd. (q).) Given the Court’s October 30, 2025, ruling deeming the documents attached as Exhibit A and Exhibit B to defendants’ notice of errata (filed on October 8, 2025) to have been originally filed and served with defendants’ moving and supporting papers on their motion for summary judgment [filed 7/5/25], and further allowing defendants to file an amended reply, plaintiff’s evidentiary objections nos. 1, 2, 3, 6, and 8 are **OVERRULED AS MOOT**. (Minute Order [dated 10/30/25]; Notice of errata, p. 1, Exhibits A & B [filed 10/8/25]; defendants’ Supp. Reply [filed 12/30/25].) The Court **OVERRULES** plaintiff’s evidentiary objection no. 4.

The Court declines to rule on defendants’ objections to evidence as the evidence objected to is not relevant to deciding this motion. (Code Civ. Proc., § 437c, subd. (q).)

Defendants’ motion for summary adjudication as to the first cause of action (age discrimination in employment) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); Gov. Code, § 12940, subd. (a).) The Court finds defendants met their burden of showing a legitimate nondiscriminatory reason for taking an adverse employment action against plaintiff. (*Swanson v. Morongo Unified School Dist.* (2014) 232 Cal.App.4th 954, 966; *Arteaga v. Brink’s, Inc.* (2008) 163 Cal.App.4th 327, 352; *King v. United Parcel Service, Inc.* (2007) 152 Cal.App.4th 426, 433; UMF 8-15, 21, 24-26; Memo. Pts. & Auths., p. 7-12.) The Court further finds that plaintiff failed to produce substantial admissible evidence that defendants stated reason for the adverse employment action was untrue or pretextual, or that defendants acted with a discriminatory animus. (*Swanson, supra*, 232 Cal.App.4th at p. 966; *DeJung v. Superior Court* (2008) 169 Cal.App.4th 533, 553.)

Defendants’ motion for summary adjudication as to the second cause of action (national origin discrimination in employment) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); Gov. Code, § 12940, subd. (a).) The Court finds defendants met their burden of showing a legitimate nondiscriminatory reason for taking an adverse employment action against plaintiff. (*Swanson, supra*, 232 Cal.App.4th at p. 966; *Arteaga*, 163 Cal.App.4th at p. 352; *King, supra*, 152 Cal.App.4th at p. 433; UMF 8-15, 21, 24-26; Memo. Pts. & Auths., p. 7-12.) The Court further finds that plaintiff failed to produce substantial admissible evidence that defendants stated reason for the adverse employment action was untrue or pretextual, or that defendants acted with a discriminatory animus. (*Swanson, supra*, 232 Cal.App.4th at p. 966; *DeJung*, 169 Cal.App.4th at p. 553; *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 541.)

Defendants' motion for summary adjudication as to the third cause of action (whistleblower retaliation) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); Lab. Code, § 1102.5, subds. (b), (c).) The Court finds that defendants met their burden of showing by clear and convincing evidence they would have taken the adverse actions against plaintiff for legitimate, independent reasons even had plaintiff not engaged in protected activity. (See Lab. Code § 1102.5, subd. (b); *Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703, 712 [burden]; *Nejadian v. County of Los Angeles* (2019) 40 Cal.App.5th 703, 719; UMF 8-15, 21, 24-26; UMF 8-15, 21, 24-26.)

Defendants' motion for summary adjudication as to the fourth cause of action (retaliation) on the grounds that plaintiff cannot establish a prima facie case of retaliation or that defendants had a legitimate, non-retaliatory reason for plaintiff's termination is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); Gov. Code, § 12940, subd. (h).) "[I]n order to establish a prima facie case of retaliation under the FEHA, a plaintiff must show (1) he or she engaged in a 'protected activity,' (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action." (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.) The Court finds that defendants met their burden of showing that plaintiff is unable to establish a causal link existed between his protected activity and his termination. (*Ibid.*) The Court further finds that plaintiff fails to meet his burden to provide substantial admissible evidence that defendants' intent in terminating him was to retaliate against him for any protected activity. (*Ibid.*; *California Fair Employment & Housing Com. v. Gemini Aluminum Corp.*, 122 Cal. App. 4th 1004, 1018 ["[a] causal link may be established with evidence demonstrating that the employer was aware of the protected activity and the adverse action followed within a relatively short time"]; *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 287; *King, supra*, 152 Cal.App.4th at pp. 433-434; Amended Opp. p 5.)

Defendants' motion for summary adjudication as to the fifth cause of action (hostile work environment harassment) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); Gov. Code, §§ 12923, 12940, subd. (j).) The Court finds that defendants have met their burden to show that plaintiff lacks evidence to support his claim of hostile work environment harassment. (*Aguilar v. Avis Rent A Car System, Inc.* (1999) 21 Cal.4th 121, 130-131; *Rehmani v. Superior Court* (2012) 204 Cal.App.4th 945, 951-952 *Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 482; see also Code Civ. Proc., § 437c, subd. (o)(1); *Union Bank v. Superior Court* (1995) 31 Cal. App. 4th 573, 590; UMF 24-27, 37, 42, 44; Memo. Pts. & Auths., p. 16.) The Court further finds that plaintiff fails to present admissible evidence that there is a triable issue of material fact that defendants' conduct was sufficiently severe or pervasive to create a hostile or abusive work environment. (*Aguilar, supra*, 21 Cal.4th at pp. 130-131; *Rehmani, supra*, 204 Cal.App.4th at pp. 951-952; *King, supra*, 152 Cal.App.4th at p. 433; *Choochagi v. Barracuda Networks, Inc.* (2020) 60 Cal.App.5th 444, 456; Amended Opp., pp. 10-12.)

Defendants' motion for summary adjudication as to the sixth cause of action (failure to prevent harassment, discrimination, or retaliation) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); Gov. Code, § 12940, subd. (k).) As the Court is granting summary adjudication on causes of action one, two, four, and five, the Court finds there can be no liability for defendants' failure to prevent harassment, discrimination, or retaliation. (*Dickson v. Burke Williams, Inc.* (2015) 234 Cal.App.4th 1307, 1314-1315 ["[t]here can be no liability for an employers' failure to prevent harassment claim unless actionable harassment occurred"]; see also *Caldera v. Department of Corrections & Rehabilitation* (2018) 25 Cal.App.5th 31, 44; *Aparicio v. Comcast* (2017) 274 F.Supp.2d 1014.)

Accordingly, defendants' motion for summary judgment is **GRANTED**. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
 Case No. CV-2023-0312

Hearing Date: **January 15, 2026** **Department Eight** **9:00 a.m.**

On the Court's own motion, plaintiff Xinyao Zhou's motion for leave to file demurrer and amended motion to strike is **CONTINUED** to **January 16, 2026**, at **1:30 p.m.** in Department Eight.